

General Subdirectorate
of Promotion and Authorizations
SPANISH ASSOCIATION FOR DIGITAL PRIVACY
C/ Médico Temístocles Almagro,
No. 18, Local 2
03300 Orihuela, Alicante

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RESOLUTION ON THE REQUEST FOR PUBLICATION OF THE ADVERTISING EXCLUSION SYSTEM "STOP ADVERTISING LIST"

In relation to the communication dated October 10, 2024, made by the Spanish Association for Digital Privacy (hereinafter, AsociacionEPD, or the promoter) regarding the creation of the advertising exclusion system, called "Stop Advertising List" (hereinafter, LSP, or the system), for the purpose of having the Spanish Data Protection Agency (AEPD, or the Agency) publish it on its electronic headquarters and inform the other supervisory authorities for their publication, in accordance with the provisions of Article 23.2 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (LOPDGDD), and in accordance with the following

FACTUAL BACKGROUND

First. - The communication subject to this resolution has as its background three previous communications from the AsociacionEPD, in which the publication of the LSP on the AEPD's electronic headquarters was requested and which were denied by resolutions of this General Subdirectorate of Promotion and Authorizations (SGPA) dated March 20, July 4, and October 9, 2024.

Second. - The resolution of March 20, 2024, responded to an initial communication dated February 24, 2023.

In the aforementioned resolution, the publication of the LSP, with the content presented, was denied based on several reasons. On one hand, for reasons related to the subjective scope of application of said system, given that the public interest that legitimizes the processing of advertising exclusion systems is not applicable to: "(i) deceased persons, nor to individual entrepreneurs or professional legal entities."

On the other hand, for reasons related to the content of the link to the LSP whose publication on the AEPD's website was requested, and its connection "with the offer of exclusively private and for-profit services of the promoters that the LSP intends for this AEPD to publish," which was considered contrary to the impartiality, defense of public interest, and objectivity with which the AEPD must act.

Third. - By resolution of July 4, 2024, the publication of the LSP on the AEPD's electronic headquarters was again denied because the content of the website to be published for the system: <https://listastoppublicidad.com>, remained linked to the offer of private services from its promoter, maintaining direct access, in the "Association" section, to the offer of legal services from a team of lawyers specifically against illegal intrusion into digital and analog privacy, that is, in services directly and precisely related to the purpose of the advertising exclusion system.

Fourth. - By resolution of October 9, 2024, the requested publication was again denied for a reason similar to the previous one, since it was considered that the service to the general interests that governs the actions of the AEPD was not reconcilable with the offer of private sector services included on the website whose publication was requested through the procedure of Article 23.2 LOPDGDD.

Fifth. - The three cited resolutions became final in the administrative route as no appeals were filed against any of them, once the deadlines for doing so had elapsed.

LEGAL GROUNDS

Competence

The General Subdirector of Promotion and Authorizations of the Spanish Data Protection Agency is competent to issue this resolution, in accordance with the provisions of Article 28.n) of the Statute of the Spanish Data Protection Agency, approved by Royal Decree 389/2021, of June 1.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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****The Advertising Exclusion Files in the LOPDGDD****

Article 23 of the LOPDGDD states the following:

1. "The processing of personal data aimed at preventing the sending of commercial communications to those who have expressed their refusal or opposition to receiving them shall be lawful.

For this purpose, information systems, whether general or sectoral, may be created, which will only include the essential data needed to identify the affected individuals. These systems may also include preference services, through which the affected individuals can limit the receipt of commercial communications to those coming from specific companies.

2. The entities responsible for the advertising exclusion systems shall notify the competent control authority of their creation, their general or sectoral nature, as well as the manner in which the affected individuals can join them and, where applicable, assert their preferences. The competent control authority shall publish on its electronic headquarters a list of such systems that have been communicated to it, incorporating the information mentioned in the previous paragraph. For this purpose, the competent control authority that has been informed of the creation of the system shall notify the other control authorities for publication by all of them.

3. When an affected individual expresses to a responsible party their wish for their data not to be processed for the sending of commercial communications, the responsible party must inform them of the existing advertising exclusion systems, and may refer to the information published by the competent control authority.

4. Those intending to carry out direct marketing communications must first consult the advertising exclusion systems that may affect their actions, excluding from processing the data of the affected individuals who have expressed their opposition or refusal to it. For these purposes, to consider the previous obligation fulfilled, it will be sufficient to consult the exclusion systems included in the list published by the competent control authority. It will not be necessary to carry out the consultation referred to in the previous paragraph when the affected individual has provided, in accordance with the provisions of this organic law, their consent to receive the communication from the party intending to make it."

In heading V of the Preamble of the LOPDGDD, the following is stated: "Title IV contains 'Provisions applicable to specific treatments,' incorporating a series of cases that should not be considered exhaustive of all lawful treatments. (...). Alongside these cases, others are included, such as video surveillance, the files of...

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advertising exclusion systems or internal reporting systems where the lawfulness of the processing arises from the existence of a public interest, as established in Article 6.1.e) of Regulation (EU) 2016/679."

In the legal regime of Article 23 of the LOPDGD, consulting the advertising exclusion systems published on the electronic headquarters by the competent control authority constitutes an alternative to the obligation to consult the systems that may affect the specific activity of direct marketing in

guarantee of the exercise of the right to object, compliance with which constitutes the public interest that legitimizes the processing of personal data by the controllers of these advertising exclusion systems.

Therefore, the competent control authority, before proceeding to publish an advertising exclusion system on its electronic headquarters, must assess all elements and factors that may affect the lawfulness of the processing and, consequently, the right to object. All this in relation to the principle of legitimate trust and the expectation of legitimacy generated in the obligated subjects by the fact that the information collected in the exclusion systems and its consultation comply with the provisions of the GDPR and the LOPDGDD.

****III**

Analysis of the submitted communication**

Regarding the identification of the link whose publication on the electronic headquarters of the AEPD is requested, it is noted that, at the first level of the web address of the LSP to which the submitted link directs, namely, <https://listastoppublicidad.com>, and unlike what occurred in the requests dismissed by the resolutions of this General Subdirectorate cited in the Background of Facts of this resolution, there is no longer any reference to the offer of private services from the promoters of the list. In the current configuration of the website, there is no direct link to the offer of private services from the promoters of the list, understanding that a change has occurred from the previous situation, with the direct access to the “Spanish Association for Digital Privacy” that offered services unrelated to the public interest purpose justifying the processing of data by the controllers of the advertising exclusion systems having disappeared.

It is also confirmed that the LSP exclusion system is not operational as of the date of this resolution, so the continuity of its publication on the electronic headquarters of the Agency must be subject to the verification that, once the list is operational, it effectively fulfills the purpose of exercising the right to object, compliance with which constitutes the public interest that legitimizes the processing of personal data by the controllers of these systems. Otherwise, the AEPD could initiate a procedure for revocation, declaration of expiration, or, in general, the deprivation of effects of this publication resolution, if the conditions, requirements, or circumstances justifying the publication of the system on the electronic headquarters of this AEPD are not met.

In view of the background of facts and legal grounds described,

****IT IS RESOLVED****

****FIRST:**** To publish on the electronic headquarters of the AEPD, dated January 31, 2025, the advertising exclusion system called “LISTA STOP PUBLICIDAD,” under the responsibility of the Spanish Association for Digital Privacy (AsociacionEPD). Once the advertising exclusion system is operational, the continuity of the publication of said system on the electronic headquarters of the AEPD is subject to the condition that the aforementioned list effectively fulfills the purpose of exercising the right to object, compliance with which constitutes the public interest that legitimizes the processing of personal data by the controllers of these systems. Otherwise, the AEPD could initiate a procedure for revocation, declaration of expiration, or, in general, the deprivation of effects of this publication resolution, if the conditions, requirements, or circumstances justifying the publication of the system on the electronic headquarters of this AEPD are not met.

****SECOND:**** To notify this resolution to the Spanish Association for Digital Privacy.

Against this resolution, which does not conclude the administrative procedure, according to the provisions of Article 112.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Article 121 of the aforementioned Law 39/2015, of October 1, an appeal for reconsideration may be filed before the Presidency of the Spanish Agency for Data Protection within one month from the day following its notification.